



2025:DHC:557-DB



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* **IN THE HIGH COURT OF DELHI AT NEW DELHI*****Date of Decision: 30th January, 2025***

+ W.P.(C) 1148/2025

SANDEEP SINGH

.....Petitioner

Through: Mr. P. Sureshan, Adv.

versus

UNION OF INDIA AND ORS.

.....Respondents

Through: Ms. Shreya Bhardwaj, Adv.
Mr. Ajay pal, Law Officer, Mr.
Shiv Kumar Singh and Mr.
Rajesh Singh, Adv.**CORAM:****HON'BLE MR. JUSTICE NAVIN CHAWLA****HON'BLE MS. JUSTICE SHALINDER KAUR****NAVIN CHAWLA, J. (ORAL)****CM APPL. 5658/2025 (exemption)**

1. Allowed, subject to all just exceptions.
2. The application stands disposed of.

W.P.(C) 1148/2025 and CM APPL. 5657/2025

3. The present petition has been filed by the petitioner, seeking a direction to the respondents to issue an appointment order to the petitioner for the post of Constable/Driver under the EWS category in accordance with the notification dated 15.03.2023.
4. The limited grievance of the petitioner in the present petition is that although the petitioner has secured more marks than the cut-off marks, and, to his knowledge and belief, is higher in merit than the Personnel appointed, who he names as Sahil Sharma at serial number 48115 and Bhur Singh at serial number 48135, the petitioner has not been given the offer of appointment.



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5. The petitioner raised this grievance not only by seeking information under the Right to Information Act, but also by addressing legal notice dated 03.01.2025, which has not been responded till date.
6. Issue notice.
7. Notice is accepted by Ms. Shreya Bhardwaj, the learned counsel for the respondents. She prays for time to seek instructions.
8. Keeping in view the nature of the grievance of the petitioner, we are of the opinion that the respondents must communicate the final result to the petitioner within a period of three weeks from today, along with the reason why he has not been offered the appointment, that is, if he did not make the merit list or otherwise. In case the respondents find that the petitioner was wrongly not offered an appointment, the respondents shall offer appointment to the petitioner with all consequential benefits, relating back to the date when his batchmates were offered the same. In case, the request of the petitioner is rejected and the petitioner is aggrieved thereby, it shall be open for the petitioner to challenge the same in accordance with law.
9. The petition, along with the pending application, stand disposed of with the above direction.

NAVIN CHAWLA, J

SHALINDER KAUR, J

JANUARY 30, 2025

SU/KP

Click here to check corrigendum, if any